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Case Name: *Escarlett Valle Guillen Lopez et al. v. DGDG 10, LLC et al.*

Case No.: 21CV391989

I. BACKGROUND

This is an action under the Song-Beverly Consumer Warranty Act by plaintiffs Escarlett Valle Guillen Lopez and Fidel Lopez Ramos (“Plaintiffs”) against defendants DGDG 10, LLC (“Capitol Buick”), General Motors, LLC (“GM”), and various Doe defendants. The lawsuit is based on Plaintiffs’ acquisition of a 2016 GMC Terrain. Plaintiffs allege that they entered into a written warranty contract with GM and that the vehicle suffered from (unspecified) engine defects.

Plaintiffs filed their original and still-operative complaint on December 6, 2021. The complaint states three causes of action: (1) Violation of the Song-Beverly Act—Breach of Express Warranty (against GM and Does); (2) Violation of the Song-Beverly Act—Breach of Implied Warranty (against GM and Does); and (3) Negligent Repair (against Capitol Buick and Does).³ Attached to the complaint as Exhibit 1 are selected pages from the owners’ manual for the subject vehicle.

Currently before the court is a motion for summary judgment, filed by GM on August 28, 2024. The court has not received an opposition from Plaintiffs. This matter is currently set for a jury trial on December 16, 2024. The trial date was set at a March 5, 2024 trial setting conference, more than five and a half months before the filing of the motion for summary judgment was filed.

II. MOTION FOR SUMMARY JUDGMENT

A. The Basis for GM’s Motion

GM moves for summary judgment on the basis that “Plaintiffs cannot pursue breach of express warranty claims under Song-Beverly against GM about a vehicle Plaintiffs did not purchase as a ‘new motor vehicle’” and on the basis that “Plaintiffs cannot pursue breach of implied warranty claims against GM based upon a vehicle that Plaintiffs bought ‘used.’” (Notice of Motion at p. 2:6-9.) GM relies on *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), which was pending review at the time GM filed its motion but as to which the California Supreme Court has now issued a published decision, on October 31, 2024.

B. Discussion

Despite the fact that the *Rodriguez* case may provide some support for GM’s position, the court denies the motion for summary judgment for failure to comply with Code of Civil Procedure section 437c, subdivision (a)(3). This code provision states: “The motion [for summary judgment] shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” The 30-day time limit on summary judgment hearings before trial is calculated based on the trial date in effect *at the*

³ The third cause of action is mislabeled as a fourth cause of action in the body of the complaint.

time the summary judgment motion is filed and noticed, regardless of whether or not that is the original trial date. (See *Green v. Bristol Meyers Co.* (1988) 206 Cal.App.3d 604.)

Ordinarily, if a moving party is unable to obtain a hearing for the summary judgment motion more than 30 days before trial, the party will immediately file an ex parte application for the court to find good cause to hear the motion within 30 days of the trial date. GM did not do that here; instead, after obtaining the December 3, 2024 hearing date in *August 2024*, it did nothing to alert the court or the Plaintiffs to the fact that this hearing date was only 13 calendar days before the jury trial. If it had done so, the court could have made the necessary adjustments. In addition, GM had ample time after the trial setting conference on March 5, 2024 to file a motion for summary judgment that would have complied with Code of Civil Procedure section 473c, subdivision (a)(3); instead, it *waited five and a half more months to file its motion*. Unless a trial court finds good cause under subdivision (a)(3), a notice of motion setting a summary judgment motion for hearing within 30 days of the trial date is invalid. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268; see also *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-1205 [“the court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

While the court could theoretically find good cause on its own, GM has provided no apparent rationale for doing so. Rather, GM has simply ignored subdivision (a)(3). In addition, the court finds that 13 calendar days—here, only nine court days—is far too close to the trial date to be reasonable.

If GM believes that the new *Rodriguez* decision provides a basis for a favorable judgment as to one or more of Plaintiffs’ causes of action, it can make that argument to the trial court judge. GM does not get to have a non-compliant summary judgment hearing or an 11th-hour continuance of trial after having sat on its hands for the last several months.

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Case Name: *Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.*

Case No.: 22CV396170

Plaintiff Christian Humanitarian Aid, Inc. (“CHA”) brings the present motion to release or reduce the mechanic’s lien in this case, under *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383, 388. CHA argues that defendant AM Star Construction, Inc.’s (“AMS’s”) lien was both untimely and that it “willfully included un-lienable consequential damages.”⁴ The court finds that the lien was untimely and therefore must be released.

CHA contends that AMS, the general contractor on the construction project at issue, stopped all work on the project on October 21, 2020. AMS contends that it stopped all work slightly later, on November 30, 2020. For purposes of this motion, CHA “conservatively” takes the latter date and then argues that because there was no work performed on the project “for a continuous period of 60 days” from November 30, 2020 to January 29, 2021, AMS had 90 days from January 29, 2021 to record its mechanics lien under Civil Code section 8412—i.e., until April 29, 2021.⁵ Here, AMS did not record its lien until June 1, 2021, which was more than a month after the statutory deadline.

AMS opposes CHA’s timeliness argument by disputing the factual predicate: even though AMS admitted in a verified RFA response that it “did not perform any work at the PROJECT after November 30, 2020” (Response to Request for Admission No. 15 (Declaration of Kaveh Badiel, Exhibit D)), it claims that *other* parties continued to work on the project from December 2020 to May 2021, and so “there was no continuous 60-day cessation of work during any part of the [relevant] period.” (Opposition, p. 2:5-21.) AMS supports its opposition with two declarations: (1) a declaration of Michael Achkar, AMS’s President, who says that he “observed labor and work being performed by construction workers, observed building materials being transported into the Property’s building by construction workers, and/or observed piles of construction debris generated by construction activities performed during said time period” (Achkar Declaration, ¶ 4.d); and (2) a declaration of Lucie Michail, an attendee of church mass at CHA, who “personally observed the progress of ongoing work at the first floor areas and second floor areas of the Property’s building where AMS had performed its work” (Michail Declaration, ¶ 7.c).

The court finds this to be a very odd argument by AMS. The court has been given no legal authority to support the proposition that even if a lien claimant admittedly stops all work on a construction project, the deadline under Civil Code section 8180, subdivision (a)(3), does not start to run as long as *someone else* works on the project within six months. This interpretation of the statutory scheme seems to run counter to the very purpose of Civil Code sections 8180 and 8412, which are designed to set reasonable time limits on a party’s ability to bring a mechanics lien claim. While it may well be the case that the period continues to run

⁴ CHA also argues that AMS over-valued its work under Civil Code section 8430, subdivision (a): “(a) The lien is a direct lien for the lesser of the following amounts: [¶] (1) The reasonable value of the work provided by the claimant. [¶] (2) The price agreed to by the claimant and the person that contracted for the work.”

⁵ Under Civil Code section 8412, a direct contractor “may not enforce a lien unless [it] records a claim of lien after [it] completes the direct contract, and before the earlier of the following times: (a) Ninety days after completion of the work of improvement” Under Civil Code section 8180, “completion” can include: “(a)(3) Cessation of labor for a continuous period of 60 days.”